

STANDING ORDERS FOR WORKMEN

Certified Standing Orders under the Industrial Employment (Standing Orders) Act, 1946
Registered Office: No. 130/1, Ulsoor Road, Bangalore - 560 042

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STANDING ORDERS FOR WORKMEN OF PURAVANKARA LTD.

NO.130/1, ULSOOR ROAD, BANGALORE -560 042.

1.

SCOPE:

The Standing Orders shall come into force as provided in Section 7 of the Industrial Employment (Standing Orders) Act, 1946 and shall apply to all workmen employed in Puravankara Limited and its Group Companies and Subsidiaries, employed in their respective establishments and its office premises, including any of its project sites / branch / division / sales offices/ production units situated in India and any other locations established or to be established at later date and the precincts thereof.

2.INTERPRETATION:

In these Standing Orders, unless there is anything repugnant to the subject or context:-

- a. "ESTABLISHMENT" or "COMPANY" means the M/s. PURAVANKARA LTD and its group / subsidiary companies, namely Provident Housing Limited, Starworth Infrastructure & Construction Limited and future establishments as and when it is established. Having its registered office at No.130/1, Ulsoor Road, Bangalore - 560 042, includes its office, premises, buildings, development centre's and branches wherever situated in Karnataka or anywhere else in India and shall include "premises" as defined under these Standing Orders.
- b. "EMPLOYER" OR "MANAGEMENT" means the Chairman, Managing Director, Directors, Executive Director, President, Vice President, General Manager or such other person or persons vested with the authority by the Chairman / Managing Director of the company regarding observance or execution of these Standing Orders.
- The "MANAGER/ AUTHORISED SIGNATORY" means any person Or persons

duly appointed as Manager of the company for the purpose of the Factories Act,
1948 or Employer under the definition of Karnataka Shops & Commercial
Establishments Act 1961 or who for the time being is authorised by the Chairman /

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Managing Director of the company or any other Director of the company to act as a Manager on behalf of the company for the observance of the Standing Orders.

d. "EMPLOYEE / WORKMAN" means any person employed by the company in its Establishment who is a workman as defined in the Industrial Employment (Standing Orders) Act, 1946.

e. "MEDICAL OFFICER" shall mean the registered medical practitioner approved by the Management from time to time.

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Managing Director and /or any Manager as defined under these Standing Orders.

g. "PREMISES" includes places of the establishment or company including buildings and precincts thereof- open spaces therein owned, leased to or hired or used by or in the control of the company and shall include "Establishment" or "Company" as defined under these Standing Orders.

h. The term "PROPERTY" for the purpose of these standing orders shall in addition to the normally recognized and defined moveable and immovable assets of the establishment.

i. The term "POLICIES" for the purpose of this standing orders shall be used for defining of usages of leaves and holidays, Attendance, Computer Equipments, in/outstation travelling, separations, dress code, appraisal and increment, Email, Data Card, etc.

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"OURSTATION" means any place outside the establishment premises within India or outside India.

k. "OUTSIDE DUTY" means any work assigned to the employee by his Superior outside the establishment premises anywhere within the municipal limits, within the city limits, outside the city limits, anywhere in India or outside India.

1. "NOTICE" mean any notice in writing required to be given or to be posted or to be communicated to the workmen under this Standing Orders or company policies or .by any other law.

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Im. "NOTICE BOARD" means the display board or boards maintained for the purpose
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of displaying notice in the establishment and include boards maintained near the
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main gatepr time office or project sites or work areas.

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n. ""SUPERIOR" means a manager / head of the department / division or any person under who's instructions and / or supervision (direct or indirect) the workmen is working or has to work and includes supervisors and heads of other sections or department under who's direction he or she is supposed to work for the time being.

o. "MUSTER ROLL" means all the registers wherein the attendance of the workmen is marked or maintained.

p. Wherever the singular is used in these Standing Orders, the same shall be construed as including the plural and the masculine gender shall include the feminine gender.

3.CLASSIFICATION OFEMPLOYEES:

Employees will be classified as follows:

a. ""PERMANENT" employee is one who is employed on a permanent basis and includes any person who has satisfactorily completed the prescribed period of probation or any extended period and has been so intimated in writing by the company in the same or higher or equivalent category in the Establishment/Company.

b. ""PROBATIONER" means a workman who is provisionally employed to find out the suitability to fill a permanent vacancy and who has not completed the prescribed probation period. The prescribed period of probation shall be initially for 6 months, which may be extended by another period not exceeding 6 months in writing at the discretion of the management. On completion of probationary period, if a probationer is not confirmed, either the probationary period may be extended or he / she may be informed in writing that his / her services are being terminated. Unless confirmed in writing a probationer shall continue to remain as probationer only. However, the management shall communicate to the worker

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have his / her probationary period extended or be reverted to his / her old /

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management.

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be determined by the company and may be paid appropriate stipend. He / she shall not be entitled to employment in the company after completion of training.

The company shall clearly notify the scheme of traineeship or scheme of training with details such as admission procedure, strength in a batch, faculty members, curriculum, duration of the training, evaluation practice and certification procedure, stipend, etc.

d. "CONTRACT WORKMAN": Contract workman is one who is appointed for a specific job for a specific period mentioned in the appointment order issued to him / her. His / her appointment shall be subject to such terms and conditions as may be specified in the contractual appointment order issued to him/her.

e. "TEMPORARY EMPLOYEE" is one who is employed for work which is of a temporary nature, or likely to be finished within a limited period or is employed in a permanent post for a temporary period.

f. "CASUAL EMPLOYEE" is one who is employed on a daily basis or piece rate basis for work, which is essentially of an occasional or casual in nature on a day-to-day basis.

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company and/or one who is engaged essentially in learning any work in the establishment provided that the period of such learning shall not exceed three years. He shall be paid a stipend as may be periodically determined and shall not have any right of employment, temporary, permanent or casual.

Provided, that the provisions of the Standing Orders shall not apply to any apprentice or stipendiary trainee in respect of whom the company undertakes with the Government or other public or educational bodies to give practical training only, for any specified period.

4.RECRUITMENTANDAPPOINTMENT

- a. At the time of seeking employment persons may be required to make an application in writing and also to fill in and sign the prescribed forms of employment in the company.
- b. All workmen will be deemed to have been appointed on the basis of representations made and facts disclosed in their application for employment or in the forms if required to be filled up at the time of employment. In case any fact mentioned in the application or forms is found to be false, the appointment will be deemed to have been automatically terminated or cancelled.
- c. Every workman other than a casual workman shall be given a letter of appointment/ Contracts / Traineeship / Apprenticeship, as the case may be, in the prescribed form stating briefly therein the terms and conditions of such appointment.
- d. No workman shall engage himself/herself in any vocation outside that of the company, except with the prior consent in-writing of the Management.
- e. No person shall be recruited for employment other than casual employment except with a certificate from the company's Medical Officer regarding his physical fitness for employment.

If there are any terms and conditions specifically prescribed in the letter / order of appointment, those conditions will also be enforceable, in addition to these Standing Orders.

5.MEDICALEXAMINATION:

All workmen, except Casual workmen, shall be subjected to medical examination by the company's medical officer or any medical practitioner approved or nominated by the management from time to time and so notified. The management may at any time require any workman to be examined by the company's medical officer. If in the opinion of the company's medical officer, the examination shows that the workman is suffering from any disease or complaint which is infectious and or contagious and of an objectionable nature or liable to continuously or frequently interfere with his normal duties or with the health of other workmen,

the management may terminate his / her employment.

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Provided where the said medical opinion is disputed within one month from the date of intimation of the outcome of the medical examination, the management will refer him / her to any registered medical practitioner or Board of the State Government for medical opinion at their cost. The intervening period of non-employment will be treated as on duty if the Medical Board certified the workman as fit.

6.RECORD OF AGE:

a. Every workman at the time of entering into the employment shall be required to declare his / her age in the application for employment or otherwise and produce proof of his / her age. The following documents shall be deemed to be authentic proof of age:

i.

Birth certificate issued by the competent local authority

ii.

Transfer certificate issued by the school authorities.

ii.

Driving License /Passport / Aadhar Card

b. The age so declared and entered in the records maintained by the management at the time of entering into service, shall be final and binding on the workman concerned and any request from the workman at a later date for change of date of birth, shall not be entertained.

c. If a workman is appointed based on the documents mentioned above in respect of his / her age, and at a later date, if it is found either the records so submitted are false or the date of birth as mentioned therein is wrong, then the services of that workman shall be liable to be terminated after proper enquiry.

7. IDENTITY CARD:

Every workman shall be supplied with an Identity Card or other means of identification which shall be worn by him / her during working hours within the premises and shall be surrendered by the workman to the manager or such authorities as the company may direct, at the time of leaving the services of the company, otherwise the final settlement will not be made.

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8.MANNEROFENTRYANDEXIT:

Entrance and exit from the premises shall be through prescribed gates only and every employee shall show his Identity Card to the security on duty while passing through such gates. IN and OUT Time shall be registered with the movement register / attendance recording system at the time of entering and leaving the establishment. Employees shall not leave the premises during the working hours without prior permission from the manager or his superior.

9.SEARCH:

- a.All workmen are liable to be searched while entering or leaving the premises by a person authorized to do so by the manager to ensure that they are not in unauthorised possession of the property belonging to the company or to other workmen, or of any article likely to jeopardise the security of the establishment or of other workmen.
- b. No female Worker shall be searched except by and in the presence of a female searcher.
- c. Lockers or cupboards of the workmen may also be checked at any time by any person authorised by the management, provided that no search shall be made except in the presence of at least two other persons as witnesses, apart from the workman concerned.
- d.If, in the opinion of any officer of the company, an employee has consumed alcohol or narcotics or is under the influence of alcohol or drugs, while entering the premises or any time thereafter during working hours. He / she shall not be permitted entry into the premises or shall be sent out if he / she have already entered. Any employee shall be liable to appear before a registered medical officer as may be directed by the company for examination. Upon failure or refusal to do so appear, it would be deemed that he/she has consumed alcohol or narcotics or is under the influence thereof.

10. REGISTERING ATTENDANCE:

- a.Every workman is required to mark their attendance by signing in the Attendance register maintained for this purpose while coming in for work and going out or record their time IN and OUT in the gadget or device meant to mark their attendance.
- Workmen shall record their attendance "IN" and "OUT" every time they enter to report for duty and go out of the premises on duty or completion of their working hours /shift.

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b. Under no circumstances shall a workman mark the attendance or proxy punch of another workman other than his / her own.

c. Any workman who attends work and fails to register his / her attendance in the manner specified, shall be liable to be treated as absent unless he / she submits, to the satisfaction of the authority appointed for the purpose, the reasons for his / her failure to do so.

d. All workmen shall be at their appointed place of work at the time fixed and notified.

Any workman attending late shall be liable to be shunt out and treated as absent for the day. Where a workman attending late is permitted to attend work, he shall be liable to the deduction of wages as provided for in the Payment of Wages Act, 1936.

e. Any workman found absent during working hours from his / her appointed place of work without permission or without sufficient reason, shall be liable to be treated as absent for the period of such absence.

f. If a workman leaves the premises of the establishment during working hours without permission, he/she shall be liable to be treated as absent for the whole day in case his/her absence commences before the recess period and for half-a-day in case his/her absence commences after the recess period, and without prejudice to being so treated as absent, the workman shall be liable for ;

(i) Deduction of wages in respect of such absence as may be permissible under the Payment of Wages, Act, 1936 and / or

(ii) Disciplinary action as is provided for in these Standing Orders.

11. WORKING HOURS:

a. The establishment shall work for such number of shifts a day and such number of hours a shift as the management may decide subject to the relevant provisions of the Shops and Establishment Act or Factories Act and Rules there under, as applicable.

b. The management may from time to time fix the periods of hours of work for all classes of workmen and the same shall be pasted prominently on the notice board/s of the establishment as required under the Shops and Commercial Establishment Act and the Rules there under, as applicable.

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c. Subject to the provisions of the Shops and Commercial Establishments Act and, any workman who is considered necessary for performing urgent work or repairs may be called upon by the company to work overtime on any working day and also on weekly off day or declared holidays and where such work does not entitle the workmen to overtime wages as per the provisions of the Law, he / she shall be granted substitute off or compensatory off.

d.Shift working: At the discretion of the management more than one shift may be worked in a department or departments or any section of a department or any project site of the establishment.If more than one shift is worked,the workmen shall be liable to be transferred from one shift to another. Ordinarily no shift working shall be discontinued without giving notice as per Law in writing to the workmen prior to such discontinuance. Provided that no such notice shall be necessary,

i.if the closing of the shift is under an agreement ; or

i. if as a result of closing of the shift, no permanent workman will be retrenched;or

iii. If the closure is due to circumstances beyond the management's control.

iv.If as a result of the discontinuance of the shift working, any workman is to be retrenched, the provisions of the Industrial Disputes Act, 1947 (Central Act XIV of 1947) shall be in so far as it relates to retrenchment of

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his employ any person, the workman retrenched shall be given notice and re-employed in accordance with the provisions of the above said Act.

v.Every workmen shall work in the specified shift allotted to him / her and shall not be allowed to change or exchange with other workmen his / her shift without specific order from the management to this effect.

COMMUNICATIONS TO WORKMEN:

The notice in respect of the following shall be displayed on the notice board:

a.

Date of payment of wages

b.

List of paid holidays

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List of Compensatory Holidays

d. Any other matters of general importance to workmen.

13.PAYMENT OF SALARIES/WAGES:

Payment of salaries will be in accordance with the Payment or Wages Act, 1936. Should the payday of the month fall on a holiday or weekly holiday, the salary / wages shall be paid on the preceding working day.

The wages will be paid by crediting the employees account at various listed banks by the company. Deduction from wages will be in accordance with the Payment of Wages Act, 1936, and the Rules thereof, except otherwise provided in these Standing Orders.

Where the employment of any employee ceases for any reason whatsoever, the wages / salary earned by such employee shall be paid to him before the expiry of 45 days from the date of cessation of such employment, provided the employee has duly completed all prescribed formalities that may be statutorily prescribed and/or as in practice in the company. Except for the leave with wages and festival holidays with pay specified under these Standing Orders, the employee shall be paid wages for the period during and in which he has in fact not worked.

14.DATE AND MANNER OF PAYMENT OF UNCLAIMED WAGES:

a. Notice specifying the pay days, shall be pasted as required by The Payment of Wages Act in a conspicuous place in the establishment.

b.

.Any wages due to a workman, but not paid on the usual pay day on account of their being unclaimed shall, if a substantiated claim is presented by the workman, or on his / her

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behalf by his / her legal representative within three years from the date on which the wages became due to the workman, be paid by the management to the workman or to his / her legal representative as the case may be on such unclaimed wage pay day in each week as may be notified in this behalf.

15. INCREMENTS:

Increments in the scales of wages, if any, are not automatic and it shall be earned by employee based on their work, performance, attendance and conduct. No increment will be withheld without giving the employee a reasonable opportunity to represent against such action.

Subject to the provisions of the Payment of Wages Act, 1936 the management reserves the right attendance is not satisfactory.

Annual increment will be considered only when it falls due in respect of the employee concerned, on the basis of their date of appointment / annual performance review period.

16. PROMOTION POLICY

Employee's promotion to a higher grade / skill is the executive right and function of the management. While promoting an employee his merits and seniority will be considered as main criteria. In deciding this factor, the employee's / workman's qualification, performance, efficiency and attendance, past service records shall be taken in to consideration.

17. TRANSFER

The workmen are liable to be shifted from one section to another or from one department to another or from one project location to another project location or to any other branch or area office or to any other division of the company situated anywhere in India or existing now or to be formed in future or to any office or deputed to any affiliated company anywhere in India.

Provided that the wages, grade, continuity of service and other conditions of service are not adversely affected by such change of place of work and that the workmen shall be allowed one station to another.

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A workman will always be liable to do any suitable alternative job provided by the company, in the event of lack of work on the job for which he / she is normally employed. In such case his / her wages shall not be adversely affected.

In case a workman refuses to abide by the order of change of place of work and fails to report for duty at the change of place of work, such workman shall be deemed to be absent from duty for the period of such refusal and shall be deemed not to have earned any wages / salary for the period and such workman shall also be liable for disciplinary action under these Standing Orders.

18. TEMPORARY CLOSURE OF DEPARTMENTS AND LAY-OFF OF WORKMEN

FOR CAUSES BEYOND THE CONTROL OF THE EMPLOYER:

a. The management may at any time, in the event of fire, catastrophe, breakdown of machinery, stoppage of power supply, epidemic, civil commotion, shortage of orders or other trade reasons or prolonged labor trouble or shortage of components or any other cause beyond the reasonable control of the management, stop working any machine or machines, suspend work or close down any department or departments or any Project wholly or partially for any period or periods. The payment of compensation for the consequent lay off and retrenchment shall be in accordance with the relevant provisions of the Industrial Disputes Act, 1947.

b. In the event of any such stoppage or closure during working hours, the workmen affected shall be notified by notices put upon notice boards in the department concerned and at the designated place of office, as soon as practicable, when work will be resumed and whether they are to remain or leave the establishment. The workmen detained in the establishment during such stoppage or closure shall be entitled to receive wages for the whole of the time during which they are detained in the establishment.

19. RESUMPTION OF WORK AFTER TEMPORARY CLOSURE:

a. Any workman who has no work as per sub-clause (b) of Clause 18 above shall not be practicable, reasonable notice shall be given for resumption of normal work and all

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workmen so laid off under Clause 18 who present themselves for work, when the normal

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b. Provided that any workman who for any bonafide reason is unable to resume work on the day of resumption of normal work, may be permitted to resume the work subsequently, if he / she presents himself / herself within a reasonable time to the satisfaction of the management.

c.If any workman so laid off fails to report within 8 days of posting of the re-call notice, he / she shall be deemed to have left the services of the company on his / her own and his / her services will be terminated, after adhering to the principles of natural justice.

20.INVENTIONS

Any discovery, invention or improvement whatsoever relating to design of company's products or any process or methods, techniques or any appliance or plan available for manufacture carried on or experimented upon by our company or by any firm or company or in which our company has any interest direct or indirect made by a workman / employee while in the service of the company and henceforth will be communicated to the company and same shall be the property of the company. The workman / employee must furnish all the details of the inventions to the company.

21.HOLIDAYS:

Notice specifying the weekly holidays, the National and Festival Holidays in accordance with the respective state Industrial Establishments (National and Festival Holidays) Act as may be in force from time to time shall be displayed on the Notice Board. Substitute / Modification shall be in accordance with the prevalent statute in force from time to time.

22.LEAVEWITHSALARY/WAGES

Leave with salary / wages hereinafter referred to earned leave or privilege leave shall be allowed in accordance with the provisions of Shops & Commercial Establishments Act, 1961 or any other applicable statute for the time being in force.

23.SAFETY

Every employee shall observe all safety rules / instruction / drills that shall be notified from time to time and shall use safety equipment and appliances as per the instructions issued by the management. Failure to do so shall be treated as misconduct. Every employee shall

immediately report any injury sustained during the course of his work to his supervisor concerned and no cognizance will be taken of any injury not reported immediately.

24.SECRECY

No employee shall take or attempt to take any papers, books, drawings, photographs, instruments, apparatus, documents, floppies, diskettes, tapes or any other property either movable or intellectual of the company out of the premises, nor shall in any way pass or cause to relating to the operations, business, finances of the establishment to any unauthorized person, individual or otherwise without the written permission of the manager. An employee shall whenever called upon by the company to sign such declarations, undertakings, in this behalf.

25. MISCONDUCTS:

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with the provisions of these Standing Orders.

For the purpose of these Standing Orders, the following acts or omissions, which shall not be deemed to be exhaustive, shall amount to misconduct:

1. Willful insubordination or disobedience or instigation thereof whether alone or in combination with another or others, of any lawful and reasonable order of a superior;
2. Furnishing any false, inaccurate, incorrect data information either orally or in writing regarding personal particulars required or called for by the establishment in any application, form, declaration, undertaking, document or in the course of employment or in any manner related to employment with the company.
3. Impression, forgery of any nature or attempting the same or being accessory thereto.
4. Participation in an illegal or unjustified;

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Strike or abetting, inciting, instigating others to strike or acting in furtherance thereof whether alone or in combination with others.

(.-i. Striking work or refusing to work alone or in combination with others without giving 14 days prior notice or in contravention of the provisions of the Industrial Disputes Act, 1947 or any other enactment or rules for the time being in force.

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5. Willful slowing down in performance of work or abetting or instigating others thereof or causing slowing down of work in his / her department or other departments, or any place of work of the establishment.
 6. Failure or refusal to perform discharge duties, responsibilities that have been allotted and / or other work for which he has the basic skills or may have been trained by the establishment from time to time.
 7. Low performance in work standards and non-fulfillment of prevalent or prescribed standards. Proven inefficiency where the performance of an employee is consistently below the average performance or efficiency of the department or section where he is working.
 8. Drunkenness or riotous, disorderly, indecent or improper behavior, use of abusive language, threatening, intimidating, coercing other workmen or wrongfully interfering with the work of other workmen, assault or threat of assault either provoked or otherwise, within the premises of the Establishment or the commission of any act subversive of good and proper behavior within the Establishment.
 9. Gheraoing or unlawfully restraining movement or intimidating or threatening or assaulting co-workmen or officers of the company or commission or omission of any act or conduct subversive of discipline, whether within the premises or outside, either connected or unconnected with the employment whether within duty hours or outside duty hours.
 10. Failure to intimate the management within 24 hours thereof of the commencement and conclusion of any leave granted or recommended by the ESI Corporation and of the treatment undergone in the ESI dispensary / hospital.
 11. Theft, fraud or dishonesty in connection with the company's business or property or theft of other workmen property within the establishment.
 12. Causing pecuniary loss to the company.
 13. Unauthorized entry or stay inside the premises other than during working hours.
- any information in regard to the processes or any interest of the company which the
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workman may come into possession or the knowledge of the process and secrets of the

15. Offering or accepting bribe or any other illegal gratification whatsoever either from workmen/staff or from customers / suppliers / dealers, etc.

16. Soliciting or collecting contributions for any purpose whatsoever at anytime inside the premises of the Establishment without the permission of the Management

17. Lending or borrowing money to or from fellow workmen or indulging in any monetary transaction with fellow workmen; or running of chit fund or other schemes for raising loan.

18. Canvassing for union membership or the collection of union dues, funds or contributions within the premises of the establishment, except with the prior permission of the management.

19. Engaging in any trade within the premises of the establishment without the permission of the Management.

20. Engaging in other vocation or undertaking part time or full time employment under any other employer or company in any capacity whilst still in the service of the company, except with prior permission of the management.

21. Doing private or personal work within the premises with or without tools or materials belonging to the company without the prior permission of the management.

22. Absence from work without permission / absence beyond leave already granted for a period exceeding eight consecutive days.

23. Habitual absence.

24. Habitual late attendance.

25. Negligence or neglect of work.

26. Habitual Negligence or neglect of work.

27. Habitual breach of any rules or instructions for the maintenance and running of any department or the maintenance or the cleanliness of any portion of the establishment

Payment of Wages Act, 1936.

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29. Damage, whether willful or due to irresponsible act or damage due to negligence or carelessness to work in process or to any property of the company, within or outside the premises or any instigation or abatement thereof.
30. Organising, holding, attending or taking part in any meeting within the premises of the establishment without the prior sanction of the management.
31. Distributing or exhibiting within the establishment hand bills, pamphlets, posters or causing them to be displayed by means of signs or writing or other visible representations
32. Sleeping or drowsing while on duty.
33. Entering another department or location of the company otherwise than in the course of duty hours without prior permission
34. Squatting or remaining anywhere within the premises of the establishment other than the appointed place with a view to intimidate, coerce or threaten the workmen / supervisory staff or any other staff or the management.
35. Interfering with machines or process not connected with the work allocated.
36. Loitering, malingering, idling or wasting time during working hours or being within the premises before / after authorized hours of work without the prior written permission of the Head of the Department / Management.
37. Falsifying the attendance of self or proxy punching the attendance of other staff of the company.
38. Knowingly and wrongfully tampering with the record of attendance or means of recording attendance of himself / herself or of any other workman.
39. Violation of terms and conditions of appointment order or any rules duly notified and modified or added from time to time thereto.
40. Any material misstatement or with-holding of any relevant information in the application for employment.
41. Deliberately making false, vicious or malicious statements in public or otherwise against C the establishment or any officer or workman of the establishment either inside or outside the premises of the establishment.

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42. Willful falsification, defacement, destruction or manipulation of any record of the establishment, whether maintained by himself / herself or by other staff of the establishment.
 43. Knowingly or willfully making any false or malicious or misleading statement at an
 44. Refusal to accept a charge-sheet, order or other lawful or proper communication served in accordance with these Standing Orders.
 45. Gambling within the premises of the establishment and precincts thereof.
 46. Smoking in non designated places within the premises of the establishment.
 47. Failure to observe duly notified safety instructions or interference with any safety device or equipment installed within the premises of the establishment; or instigating or inciting others to commit acts of violation likely to affect the safety of the people and the establishment.
 48. Applying for leave or seeking ratification of absence under false pretext.
 49. Deliberate abuse of any leave privilege or concession or benefit for the time being in force.
 50. Misuse of any amenity or facility or benefits provided by the management.
 51. Misuse of computer and other information technology tools for purposes not relating to the work.
 52. Claiming any monetary benefit by submitting false or fabricated record or information to the company.
 53. Committing nuisance or spitting in any place other than those specifically provided for these purposes.
 54. Failure or refusal to work on holidays when notified to do so or refusal to work overtime.
 55. Commission of an offence involving moral turpitude.
 56. Conduct in public / private life prejudicial to the reputation of the company or which may have the effect of impairing the image of the company.
 57. Commission of an offence as defined under the Indian Penal Code or any other provision of law, thereby damaging the image of the company.
- the identity card provided by the company inside the premises while on duty.

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59. Not keeping up in good condition the equipment, machine or any tools or gadgets or furniture, used or given by the company.
60. Deliberately not informing the superior of any defect in any machine / equipment / structure which a worker may notice while working on the machine / equipment / premises.
61. Interfering with machines or processes not connected with the work allocated or continuing to work on any defective machine/equipment or use of defective material or failure to report such defects to the superiors
62. Breach of the establishment's health, security and safety or other regulations that may be notified or be in vogue or practice.
63. Act of omission and commission which lower or tend to lower the quality of work product and or reduced the prevalent standards service.
64. Carrying or permitting the carrying of unauthorized persons in company's vehicles or permitting the use, deployment of company's properties by any unauthorized person.
65. Allowing or permitting the allowing of unauthorized persons access to use or benefit of company's vehicles & equipment or property, including data, information, data processes, procedure, business practices.
66. Misbehavior towards customers and visitors.
67. Unauthorized possession of any lethal weapon within the establishment.
68. Habitual breach or violation of any Standing Orders or any law applicable to the Establishment or of any rules made there under.
69. Indulging in sexual harassment whether directly or by implication which includes such unwelcome sexually determined behavior or physical contact and advances, or a demand or request for sexual favors, sexually colored remarks, display pornographic material or any other verbal or non-verbal communication of sexual nature.
70. Committing breach or violation for any reason whatsoever of any bond, undertaking, service bond, agreement, commitment, obligation, assured or accepted in writing or otherwise in favor of the company.
71. Any other acts and omissions which are subversive of discipline which are not specifically covered above.

26.PROCEDUREFORCONDUCTINGENQUIRY

A. Charge sheet and explanation:

- i. Charge sheet setting out briefly the facts of the charge and circumstances alleged against him / her specifying the nature of misconduct shall be given to the workman concerned and the workman shall be bound to receive it.
- ii. If any workman refuses to accept a charge sheet, it should be served on him / her by adopting any one of the modes of service of notice as provided for in the Standing Orders.
- ii. A workman against whom charges have been framed shall submit within the time indicated, his / her explanation in writing to the charges alleged against him / her. Provided that the Management may extend the time not exceeding 7 days for submission of explanation on reasonable grounds if it is so required.
- iv. In case, the workman fails to submit any explanation in writing, it shall be deemed that he / she has no explanation to offer.
- v. If a workman refuses to accept a charge sheet, the workman shall be asked to accept the charge sheet in the presence of two witnesses. If the workman still refuses to accept the charge sheet, he shall be informed verbally the gist of the charge, the time and place at which the enquiry into the misconduct is to be held. In spite of this, if the workman fails to present himself / herself for the enquiry, the Enquiry Officer will conduct the enquiry ex-parte.
- vi. The charges may be dropped wholly or partly, if the written explanation of the workman is found satisfactory. If the explanation is not found satisfactory and it is considered necessary to proceed further against the charge sheeted workman under the Standing Orders, the management shall order an enquiry into the charges. Domestic enquiry may be conducted by any Officer of the Company or any other person who may be an outsider, duly authorized by the management. At the enquiry, the charge sheeted workman may be permitted to take the assistance of a co-worker of his choice to defend himself / herself. However, it is the responsibility of the charge sheeted workman to bring the co-worker to assist him/her in the enquiry. No outsider will be permitted to

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assist the charge sheeted workman in the domestic enquiry. Suspension, if any, may be continued or cancelled as the management may consider necessary.

vii. The workman shall be permitted to produce any witness to defend his case and he shall be given an opportunity to cross-examine any witness on whose statements or evidence the charges were framed provided where the officer holding the enquiry for reasons to be recorded, considers it frivolous or likely to cause undue delay in the conduct of enquiry, he may disallow the request of the workman to examine such witnesses. The enquiry officer shall make a brief and faithful record of the statements made, the evidence of the witnesses and the documents laid before him / her, both in support of and against the charge. After carefully examining all the relevant materials available, the enquiry officer shall submit his findings to the management as early as possible along with the enquiry proceedings.

viii. The charges framed, the explanation and the enquiry proceedings shall be carefully considered by the management or such person appointed for the purpose and a final decision taken on the charges leveled against the workman. The decision of the management either dropping the charges or awarding punishment shall be communicated to the workman concerned as early as possible.

ix. The proceedings of the enquiry shall be handed over to the delinquent workman on conclusion of the day's proceedings.

x. The enquiry proceedings shall be either in Kannada / English as required by the delinquent.

xi. In awarding punishment under these Standing Orders, the Management may take into account the gravity of the misconduct, previous record, if any, of the workman or other extenuating or aggravating circumstances that may exist and / or brought to the notice of the Management.

xii. If a workman who is kept under suspension and after enquiry, is dismissed / discharged by the Management, he/she shall be deemed to have been dismissed / discharged with effect on and from the date of suspension unless otherwise indicated in the order of dismissal.

B. Suspension pending enquiry and payment of subsistence allowance:

1. Where disciplinary proceedings against a workman is contemplated or is pending or criminal proceedings pending and the employer is satisfied that it is necessary or desirable to place the workman under suspension, the management may, by an order in writing suspend the workman with effect from such date as may be specified in the order. A statement setting out in detail the reasons for such suspension shall be supplied to the workman within a week from the date of suspension, if such details are not given in the said suspension order.

2. Any workman who is placed under suspension pending enquiry may be required by the management to remain at the place of his posting during the period of suspension. He has to get prior permission of the management if he wants to leave the place of his posting.

3. A workman who is placed under suspension under the above clause, during the period of such suspension, be paid subsistence allowance at the following rates, namely:-

i. A workman who is placed under suspension, shall during the period of such suspension, be entitled to receive subsistence allowance of an amount equal to fifty percent of the wages which the workman was drawing immediately before suspension for the first ninety days reckoned from the date of such suspension.

i. Provided that where the period of suspension exceeds ninety days but does not exceed one hundred and eighty days, the workman shall be entitled to receive, after the said period of ninety days, subsistence allowance equal to seventy five percent of the wages, which the workman was drawing immediately before his suspension.

ii. Provided further that where the period of suspension exceeds 180. days, the workman shall be entitled to receive after the said period of 180 days a subsistence allowances equivalent to Ninety per cent of the wages, which the workman was drawing immediately before his / her suspension

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*4. " Provided that where the enquiry or criminal proceedings is prolonged beyond the period of 90 days for reasons directly attributable to the workman, the subsistence allowance shall for the period exceeding 90 days, be reduced to 50% of the wages which the workman was drawing immediately before his / her suspension.

5. A workman shall not be entitled to receive any subsistence allowance if he accepts any other employment during the period of his / her suspension in any Establishment other than the Establishment where he had been working immediately before his suspension.
6. A workman shall not, in any event, be liable to refund or forfeit any part of the subsistence allowance admissible to him/her under the above sub section 3(i).
7. Provided where the workman is exonerated of the charge based on which his suspension was ordered, the subsistence allowance paid to him / her for any period shall be adjusted against full wages admissible to him / her for the period of suspension.
8. The subsistence allowance shall be paid by the management to the workman on the date on which the wages due to the workman but for his suspension would have become payable.
9. If any section is not defined for the payment of subsistence allowance payable to workman, under these Standing Orders, the Karnataka Payment of Subsistence Allowance Act, 1988 to be followed by the workman and the management.

27. PUNISHMENT

A workman found guilty of an act of misconduct may be punished in any of the following manner:

1. Warned or censured
2. The workman may be fined for acts and omissions or any other act of misconduct subject to the provisions of the Payment of Wages Act, 1936.
3. Suspended from duty as a measure of punishment without wages for a period not exceeding 30 days.
4. Discharged or dismissed without notice period or compensation in lieu of such notice.
5. Reduction of salary.
- 6.

Reduction to lower post or time-scale or to a lower stage on the time-scale, if any, applicable to the workman.

With-holding of any amenity or facility or benefits provided by the management for any misuse of the amenity / facility / benefits.

8. Withholding of any increment granted or may be granted, for a specific period.

9. Recovery of the whole or part of any pecuniary loss caused to the company in accordance with law in force after adhering to the principles of natural justice.

10. No order of suspension by way of punishment, discharge or dismissal from service shall be made except after giving the workman concerned a charge sheet as provided in the Standing Orders and thereafter holding an enquiry against the workman concerned in respect of the misconduct in the manner set forth. A copy of the order of the management shall be given to the workman.

28.FINESFORMISDEMEANOR

1. Workmen may be fined for any of the following offences in accordance with the provisions of the Payment of Wages Act, 1936.

- i. Bad and careless work and neglect of duty;
- i. Disobedience and impertinence;
- iii. Petty theft;
- iv. Smoking within the company's premises;
- v. Being under the influence of alcohol or drug while at work;
- vi. Committing nuisance on the premises or any act prejudicial to health and cleanliness;
- vii. Sleeping or loitering during working hours;
- viii.
Late coming;
- ix. Entering or leaving the company premises except by the gates provided for the purpose.
- x. Causing damage to property by negligence and carelessness;
- xi. Misbehavior and quarrelling.
- xii. Non compliance or disobedient of any rule in force or instructions or directions or breach of any Standing Orders;
- xiii. . Refusal to follow safety rules and instructions or refusal to wear safety equipments or interference with or disregard of any safety guard or other devices provided for the purpose of securing the safety of the workmen and the property of the establishment.

2. No fine shall be imposed, except by the officers authorised under the Payment of Wages Rules and until the workman concerned has been given an opportunity of being heard.
3. All fines imposed on workmen and realised shall be remitted in accordance with the provisions of Karnataka Labour Welfare Fund Rules.
4. If such offences are repeated and depending upon the gravity of such offences, such commissions/ omissions will be treated as misconduct under clause 25.

29. TERMINATION OF EMPLOYMENT

a.

Except as otherwise required by the Industrial Disputes Act, 1947, the Management may at any time for a reasonable cause discharge a permanent workman by giving him/her one month's notice or by paying one month's wages in lieu of notice or as per terms of appointment. The reason for the termination of service shall be recorded in writing and shall be communicated to the workman at the time of discharge.

Explanation: Reasonable cause shall include conviction by a criminal court for any offence involving moral turpitude or chronic illness, not being able to attend to work on account of frequent illness or loss of confidence.

b.

Any order of termination of service shall be in writing and shall be signed by the Authorised person to do so and a copy thereof shall be given to the workman concerned.

C.

No order of termination of service of a workman shall be made unless the workman is informed in writing of the reasons for the termination of his/her services and is given a reasonable opportunity to show cause against such termination. A copy of the said order shall be communicated to the workman.

d.

The employment of a temporary workman or any probationer or the traineeship or apprenticeship or contractual appointment of any person as the case may be, can be terminated as per the terms of order of appointment or traineeship or contract of apprenticeship. No notice of termination shall be necessary in case the contract

of employment itself indicates a date of termination of contract or in the case of casual workmen as the employment is on a day to day basis.

e.

Where the employment of any workman is terminated by or on behalf of the Establishment, the wages earned by him / her shall be paid before the expiry of the seventh working day from the day on which his / her employment was terminated or the same shall be made available to him / her by the drawer of the wages, in case he / she does not turn up for receiving the wages.

30.DEDUCTION OF WAGESFOR DAMAGES:

Deduction of wages may also be made for damages to or loss of goods expressly entrusted to a workman for custody or for loss of money, for which he / she is required to account, where such damage or loss is directly attributable to his / her neglects or default.

31. PROHIBITION OF STRIKE:

No workman of the Establishment shall go on strike in breach of contract:

a.

Without giving to the management notice of strike, within six weeks before striking; or

b.

Within fourteen days of giving such notice; or

C.

Before the expiry of the date of strike specified in the notice as aforesaid; or

a.

and seven days after the conclusion of such proceedings.

32.ESSENTIALSERVICES

1. The following services shall be considered as essential services:

a.Plant & Machinery maintenance / Central utility department

b.Maintenance of electrical power services

c.Maintenance ofwater services

d. Security- Watch & Ward personnel

e. Transport - Drivers

f.Communication -Telephone Operators

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g. Housekeeping personnel

h. Stenographers / Personal Secretaries

i. Time Office personnel

j. Medical Centre personnel

k. Canteen Personnel

1.

Cash Section personnel

m. Workmen engaged in areas of continuous process

n. Gardeners

0. Fire Tenders

p. Persons engaged in maintenance of company housing or colony

2. Workmen engaged in essential services:

a. Shall not leave their work spots at the end of the shift unless the next shift operator or reliever comes and the charge is handed over to him / her

b. Shall not participate in any work stoppages like strike or go slow or work to rule, etc.

LEAVING SERVICES:

Any permanent workman desirous of leaving the services shall give one month's notice or one month's wages in lieu of notice to the Management or as per terms of appointment to such other officer as the management may appoint to exercise the functions of the management in connection with the business of the establishment. The wages due to such workman shall if possible be paid on the date on which the notice expires and in any case within 45 days after the expiry of the notice.

34. RETIREMENT

Every workman shall retire on completion of 60 years of age which shall be the age of superannuation. The age shall be reckoned in accordance with the English calendar. The age so

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declared by the workman during the appointment time and entered in the records of management, shall be taken as final for calculating the age of retirement.

35.WORKMANTOGIVEACCOUNT OFCOMPANY'SPROPERTY,ETC,

On cessation of his / her service, a workman shall;

- a. Give proper account of all papers, books, tools, instruments and other property of the company in his / her possession, custody or charge. The value of damages or shortages to the tools, instruments and other properties in the workman's possession, custody or charge shall be recoverable from him/her in accordance with the provisions of the Payment Wages Act 1936.
- b. Vacate any quarter of the company allotted to him / her and pay the hiring charges due, if any. Arrears of rent, electric charges etc., as may be due from the workman should be paid to the company and a no due certificate obtained from all the departments, should be handed over by the workman to the concerned official before the workman leaves the service.
- c. Compensate the company for all loss or damage caused by workman to the company's quarter and / or other movable or immovable properties of the company. Failure to comply with all or any of the above provisions shall entitle the management to withhold the workman's wages or other dues or make appropriate deductions therefore and take such other action as may deem fit.

36.SERVICE CERTIFICATE:

Every workman, other than a casual workman, who leaves the service or retires from service on superannuation or is dismissed or discharged, shall, without avoidable delay, be given a service certificate.

37.MODE OFSERVICEOF COMMUNICATIONTOWORKMAN:

Any notice or communication, any order or charge sheet or letter issued by the management shall each case:

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a. By delivering to the workman by hand and obtaining acknowledgement thereof on the copy of the notice; or

b. By exhibiting copy of the communication on the notice board of the establishment when such personal service is refused and the fact of refusal is duly attested by at least one witness; Or

c. By sending the communication by registered post with acknowledgement due, or through courier service to the last known address of the workman;

All or any one of the above modes of service shall be deemed to be a valid service of notice on the workman concerned even if such communication is refused to be accepted by the workman.

38. REDRESSAL OF GRIEVANCE:

a. Any workman desirous of redressing any grievance arising out of his / her employment or relating to unfair treatment or wrongful extraction of work on the part of the superior shall, in the first instance, submit a complaint in writing to the management, or any

b. The management or such other officer as may be designated by the management shall personally investigate the complaint at such time and place as the management may fix.

c. The complainant workman and a representative workman of his / her choice working in the same department shall have the right to be present at such investigation. Where the complainant alleges unfair treatment or wrongful extraction of work on the part of a superior, a copy of the order finally passed by the manager shall be supplied to the complainant if he / she ask for one. In other cases, the decision of the enquiring officer and the action if any taken thereon by the management shall be communicated to the complainant.

Provided that complaints relating to:

i. Assault or abuse by any person holding a supervisory position and;

ii.

Refusal of an application for urgent leave shall be enquired into as expeditiously as possible by the Management or such other officer or officers as may be authorized in this behalf.

39. FORMATION OF COMMITTEE TO ENQUIRE GRIVANCES AGAINST SEXUAL

HARASSMENT

The company / management shall constitute an internal committee as per the provisions in the Sexual Harassment of Woman at Work place (Prevention, Prohibition and Redressal) at 2013 and rules formed there under.

40.NOTICES:

a. Any matter required to be notified under these Standing Orders and any notice by the management to the workmen in the establishment shall be displayed on the notice boards maintained for the purpose at conspicuous places in the premises of the establishment.

b. Any notice or communication intended exclusively for any workman may be delivered to him / her personally in the premises of the establishment or sent to him/her by post to his / her last known address as specified in the service records or as otherwise furnished by the workman.

c. Any matter required to be notified under these Standing Orders and any notice or communication by the management to the workmen in the establishment shall be in English the official language of the company.

In case of any conflict in the meaning of the communication the English version will prevail over the communication in Kannada or any other language

41.NOTIFICATION OFCHANGEOFADDRESS:

Workmen shall notify the change of address, if any, within a reasonable time in writing to the management

42.GENERAL

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their whole time and attention exclusively to the business and interest of the company and to the best of their skill carry out their duties and shall attend punctually at the place or places where they are posted. A workman shall not directly or indirectly engage in any other

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profession or business or enter the services of or be employed in any capacity in any other company or agency either private or government. He / she shall not have any financial dealings either with the persons employed in the company or having business links with the company. All workmen shall volunteer to perform any duty required of them by their superiors to best of their ability.

b. All workmen shall at all times conduct themselves soberly and temperately, while on duty, and shall show proper respect, civility to all persons having any dealing with the company either inside the company or otherwise and shall honestly and sincerely conduct themselves to maintain good reputation.

44.DISPLAYOFTHESTANDINGORDERS

A copy of these Standing Orders in English and in Kannada shall be pasted on the Notice Board and shall be kept in a legible condition.

45.INTERPRETATIONOFTHESTANDINGORDERS:

In case of any conflict in the meaning of the Standing Orders between English and Kannada versions, the English version of the Standing Orders shall prevail over the Kannada version.

46.SAVINGANDOVERRIDINGCLAUSE:

Nothing contained in these Standing Orders shall operate in derogation of any Law / Rules applicable to the workmen or to the prejudice of any right of the workmen under an agreement, settlement or award for the time being in force or contract of service or order of a court of Law. The principles of natural justice shall govern the process of administration of the Certified Standing Orders.

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